

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 12-cv-02735-RPM

PAUL BAUMAN,

Plaintiffs,

v.

STAN BISHOP, Teller County Undersheriff,

JOSH WEATHERILL, Teller County Sheriff's Office Deputy and Member of Teller County Emergency Response Team, and

NICK HARTBAUER, Teller County Sheriff's Office Deputy and Member of Teller County Emergency Response Team,

Defendants.

FINAL JUDGMENT

In accordance with the orders filed during the pendency of this case, and pursuant to Fed. R. Civ. P. 58(a), the following Final Judgment is hereby entered.

This matter was tried from May 18, 2015, through May 22, 2015, before an empaneled jury of twelve, Senior District Judge Richard P. Matsch presiding. During the presentation of the case, one (1) juror was excused for cause, and trial proceeded with 11 jurors.

At the commencement of trial, counsel stipulated to the dismissal of defendant Jesse Baker, and defendant Jesse Baker was dismissed from the case.

On May 20, 2015, the Court heard oral argument on plaintiff's motion for judgment as a matter of law pursuant to Fed. R. Civ. P. 50, made oral findings of fact and conclusions of law incorporated herein by reference, and granted the motion as to defendants Weatherill and Hartbauer as to a violation of the Fourth Amendment by entry into and removal of the plaintiff from the vehicle he occupied.

The Court also heard on oral argument on a motion for judgment as a matter of law pursuant to Fed.

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R. Civ. P. 50 on behalf of defendants on May 20, 2015, made oral findings of fact and conclusions of law incorporated herein by reference, granted the motion as to defendant Mike Ensminger, and denied the motion as to defendant Stan Bishop. Defendant Mike Ensminger was dismissed from the case.

The trial proceeded to conclusion and the jury found that plaintiff Paul Bauman did not prove by a preponderance of the evidence that defendants Josh Weatherill and Nick Hartbauer violated the Fourth Amendment by use of excessive force. The jury further found that plaintiff Paul Bauman did prove by a preponderance of the evidence that defendant Stan Bishop is liable for the conduct of defendants Weatherill and Hartbauer. The jury further found that plaintiff Paul Bauman sustained damages caused by the violations of the Fourth Amendment and awarded damages in the amount of \$72,583. Accordingly, it is

ORDERED that judgment is entered in favor of plaintiff Paul Bauman and against defendants Stan Bishop, Josh Weatherill, and Nick Hartbauer jointly and severally in the amount of \$72,583. It is

FURTHER ORDERED that post judgment interest shall accrue at the legal rate of 0.24% from the date of entry of this judgment. It is

FURTHER ORDERED that plaintiff Paul Bauman shall file a motion for attorneys' fees and pre-judgment interest, which shall include Bill of Costs, on or before July 6, 2015.

DATED at Denver, Colorado, this 22nd day of May, 2015.

FOR THE COURT:

Jeffrey P. Colwell, Clerk

s/Cathy Pearson

By:

Deputy Clerk